International Research - SBE

Georgia Institute of Technology - Group 2 Social / Behavioral Research Investigators and Key Personnel

Switch View

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Introduction



Conducting international research often involves managing multiple sets of regulations, policies, and customs: those of the researchers' institution, the host country, the community where the research will take place, collaborating institutions, and U.S. agency sponsors. Even an unfunded researcher

working alone who will simply approach people in the street for brief interviews may need to acquire a considerable amount of information when planning the research, including the nature of social interactions, potential risks of harm, and views about privacy unique to the setting, as well as whether local permission to conduct research is required.

This module will discuss how to determine where research conducted abroad must be approved. It will identify some examples about how the setting of the research influences research design, including considerations about securing informed consent outside the U.S.

Learning Objectives

By the end of this module, you should be able to:

- Provide examples about how local context influences research design.
- Identify when institutions are engaged in research.
- Determine where research should be reviewed.

Applicable Regulations and Guidelines

Federal regulations for protecting research with human subjects, supplemented by guidance from the Office for Human Research Protections (OHRP), are quite specific about the requirements for review when U.S. agencies fund research conducted abroad. With the increase in international collaborations, especially research designed to address health issues in emerging nations, requirements for local review are evolving. For example, African nations are increasingly likely to require national review of all research, including research in the social and behavioral sciences.

It is beyond the scope of this module to identify national and local review requirements and practices around the world.

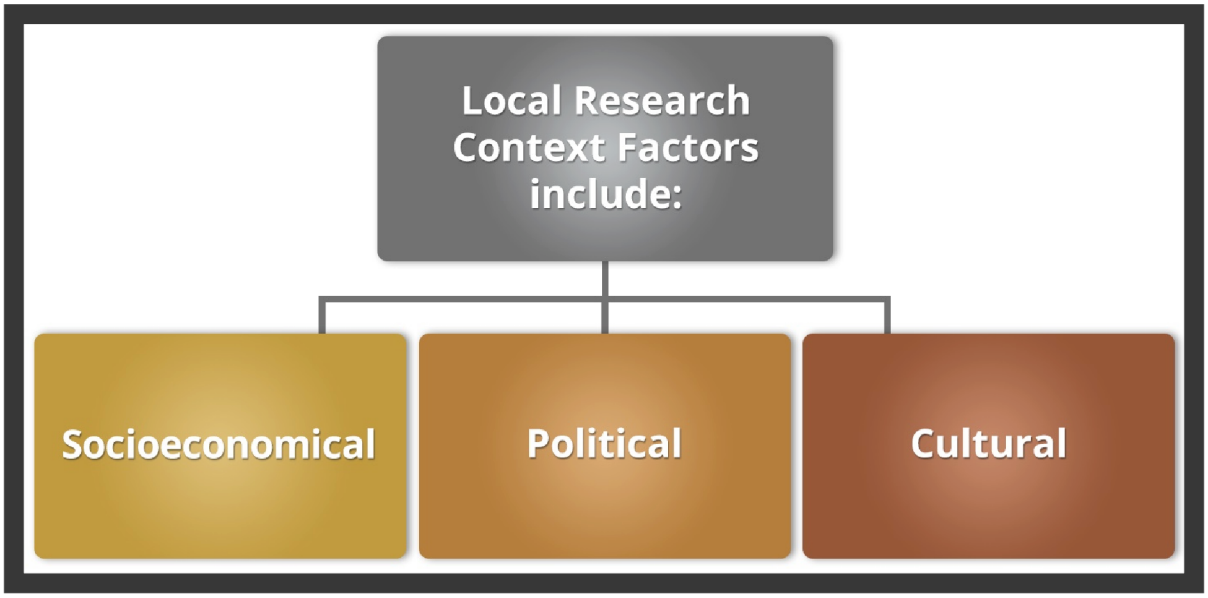
OHRP has compiled a list of international standards for human subjects research listing over 1,000 laws, regulations and guidelines. OHRP also has compiled a more specific list of international standards for social and behavioral research that may be useful.

The National Institute of Allergy and Infectious Diseases (NIAID) (a department of the National Institutes of Health [NIH]) created an online database listing country-specific clinical research regulatory information at the website ClinRegs.

Local contacts and other researchers may be the best resources for researchers in the social and behavioral sciences and the humanities.

The Importance of the Local Research Context

It is essential that researchers have sufficient knowledge of the local research context to be able to design and carry out research in a way that protects the rights and welfare of the subjects. The local research context includes socioeconomic, political, and cultural factors, and influences every aspect of the research design.



An effective child assent process requires an understanding of how relationships between parents and their children are defined. Questions that may be innocuous in

the U.S. could be offensive elsewhere. Different cultures have different authority structures that will influence how researchers handle the possibility that people may feel compelled to become research subjects.

Researchers may wish to consult with community leaders and stakeholders who may be able to provide important insights about the local research context, including information about local customs, norms, and laws.

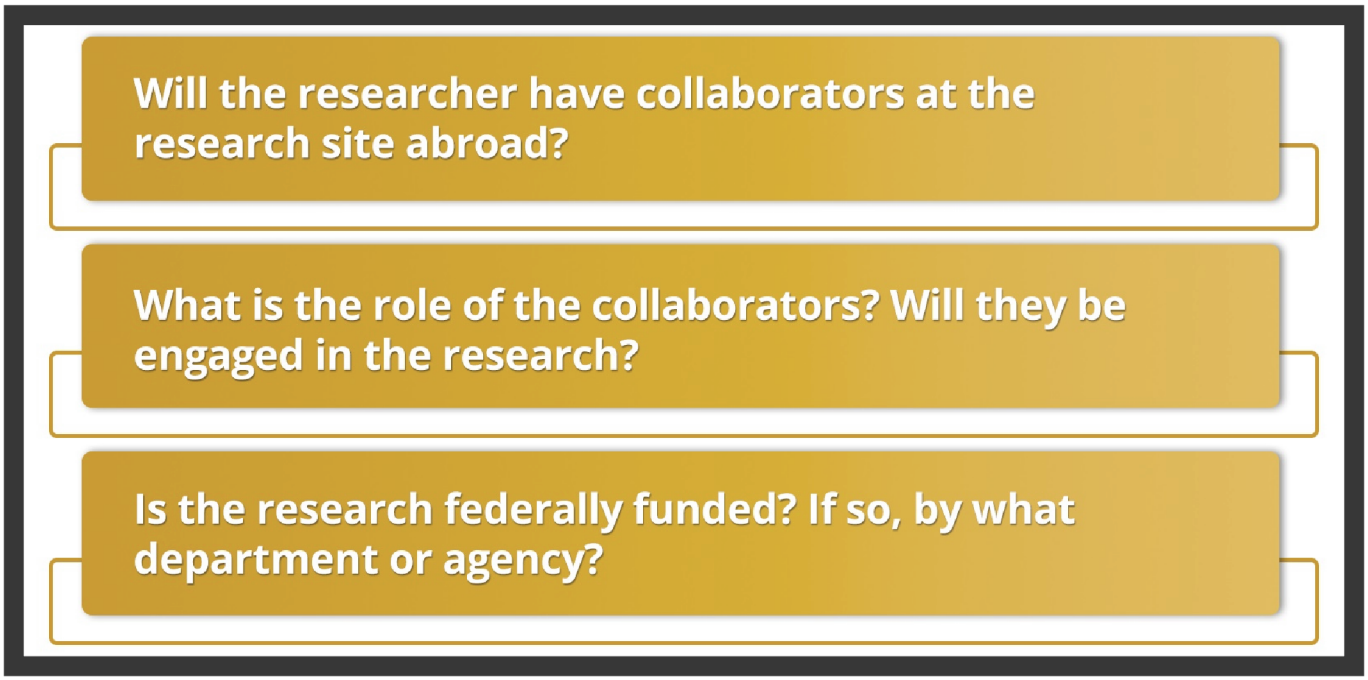
Similarly, Institutional Review Boards (IRBs) must have sufficient information to meaningfully evaluate the proposed research and may engage consultants to supplement its expertise.

Securing Local Approval

Even when the federal regulations do not require review by an IRB or ethics committee in the country or region where the research will take place, local, or even national approval of proposed research may be required in some countries. For example, an ethnographer conducting research in a village in northern Togo needed clearance, first, from the Togolese government's Ministère de la Recherche Scientifique; then, from the Préfet of the canton in northern Togo; then, from the Chef (chief) du Canton, the Chef du Village, and the Chef du Quartier. Then the researcher secured the consent of the subjects.

Determining Where Research Should Be Reviewed

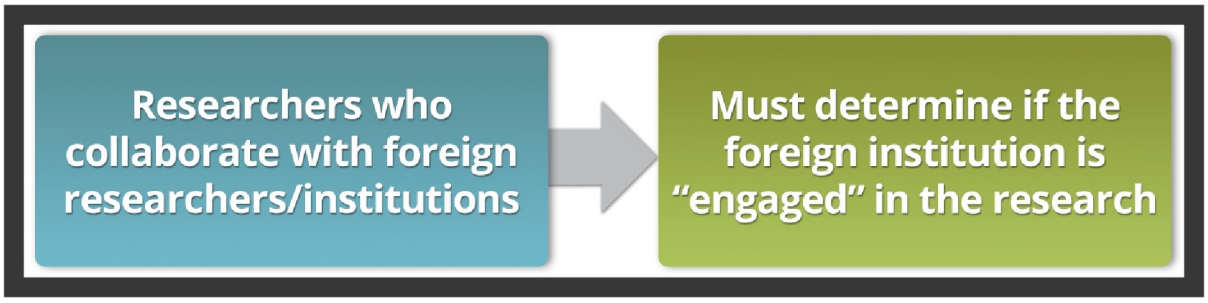
There are several factors that determine what kinds of review are needed for international research.



Research without Foreign Collaborators

If international research is carried out without the involvement of foreign collaborators the research may be reviewed by the researcher's home institution. The need for local review will be determined by policies and regulations rather than by U.S. law.

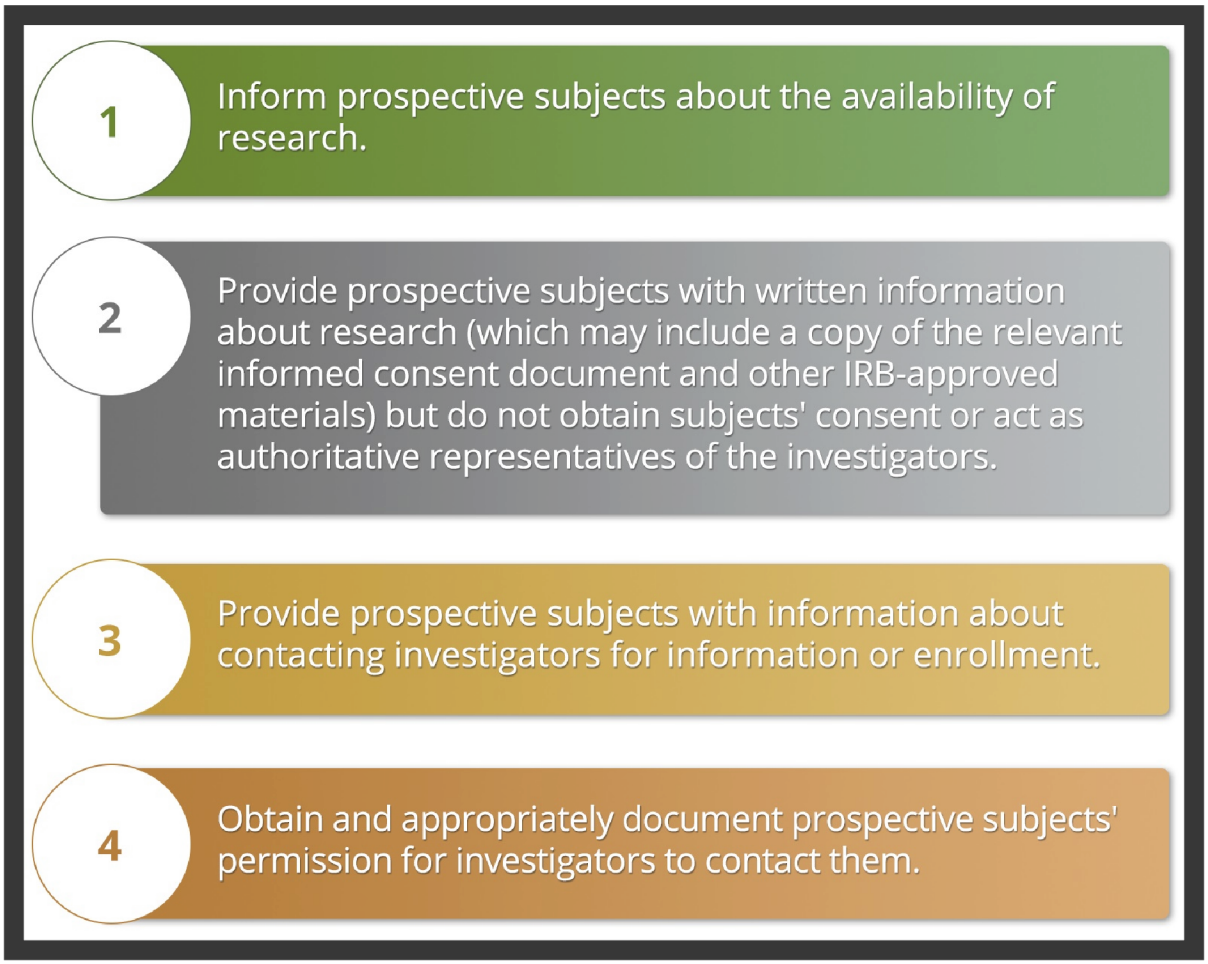
When U.S. researchers collaborate with researchers at foreign institutions, determining the appropriate review type and method depends on whether the collaborating institution is engaged in the research.



"Engagement" in Research

Briefly, an "engaged" foreign institution is one that recruits and secures consent from subjects, conducts research procedures, or receives or shares private, identifiable information.

Institutions are not engaged if their employees or agents (OHRP 2008):



An institution is not engaged if its only involvement is to provide space for the U.S. researchers to conduct their own research.

If a determination has been made that a foreign institution is engaged in the research, the next question is whether the research is federally funded and by which federal agency.

Federal agencies sponsoring international research usually require that collaborating institutions have written assurances describing how they will protect research subjects. The content of those assurances is dictated by the sponsoring agency with

varying degrees of specificity. If the research is funded by the National Institutes of Health (NIH), for example, the assurance must include procedures that are commensurate with the U.S. Common Rule (45 CFR 46, Subpart A).

Federal regulations acknowledge that local customs, norms, and laws where the research will take place may differ from the U.S. Common Rule. There are different standards and principles that foreign institutions may comply with. The Common Rule 2018 Requirements do not require that assurances include a statement of the principles governing the institution (the pre-2018 Requirements did) (Protection of Human Subjects 2018).

Standards include, among others:

- Canadian Tri-Council Policy Statement
- Indian Council of Medical Research (ICMR)
- Council for International Organizations of Medical Sciences' (CIOMS) "International Ethical Guidelines for Biomedical Research Involving Humans"
- World Medical Association’s Declaration of Helsinki

Foreign collaborators may have their own IRBs or comparable review committees. If not, they may designate another IRB willing to review the research as the IRB of record. That IRB could be the U.S. researcher's IRB or another IRB in the foreign country.

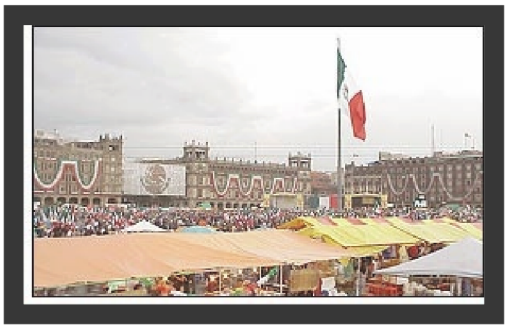
If a collaborating institution is not "engaged" in the research, assurances of compliance are not required.

Exempt Research

A great deal of research in the social and behavioral sciences may qualify for exemption from the federal regulations, depending upon institutional policy. If a proposed study qualifies for exemption, federal regulations do not require review at

the foreign site where it will be conducted. Similarly, OHRP's guidance about engagement in research does not apply to exempt research. Institutional policy will determine how exempt research conducted abroad will be reviewed and the required qualifications of reviewers.

Informed Consent



The points to consider when obtaining informed consent in non-U.S. settings include:

- **In addition to the consent of the research subjects, are there other individuals or groups whose permission must be sought?** Sometimes, in non-U.S. communities, people other than the individual taking part in the research may be required to give permission before the potential subject may be asked to participate. These individuals may include a spouse, a head of household, or a group leader. However, another individual's permission should not substitute for a subject's voluntary informed consent unless an IRB or equivalent local review committee has waived that consent process.
- **What is the appropriate language for the consent?** In many settings, there may be several languages, such as an "official" state language and a local language or dialect. Consent is best obtained using the language that is most understandable to the subject.
- **Should consent be oral or written?** In some instances, the language used to obtain informed consent is not a written language. In other instances, the people who are considering whether to take part in the research may not read the language, even if it is written. There may be some settings in which signing a document has connotations that would make a written documentation of consent problematic. The researcher should gather information about what the situation is in the research setting and propose an appropriate approach for obtaining and documenting consent.

- **Who can act as an interpreter?** Ideally, the research team is fluent in the local language. If this is not the case, the researcher must have individuals assist who are fluent in this language. However, the researcher must carefully consider the relationship between the interpreter and the subjects, especially in a small population. While most IRBs agree that using children as interpreters is not appropriate, there may be a disagreement about whether adult relatives, residents of a small village, or others already known to the subjects may be employed in this role. The issues used to determine who can interpret include the possibilities of undue pressure or influence, selection bias, and the extent to which the chosen interpreter can relay information between researcher and subjects in a clear and unbiased manner. For example, interpreters may leave out information they believe is unpleasant or culturally inappropriate.
- **What is the age of majority in the country where the research is taking place?** The age of majority should be the recognized age of majority in the country or region where the research takes place.
- **Do the parental permission and child assent processes reflect local norms?** An effective child assent process requires an understanding of how relationships between parents and their children are defined.
- **Is there a local contact person?** When research is conducted in the U.S., researchers are required to provide contact information for their IRB, or another impartial contact, in case subjects have questions or concerns regarding the research in which they are participating. In an international study, it may be important to have a local contact identified by the researcher in consultation with the community and the IRB.

Summary

Research conducted abroad may need review only by the researchers' institution. However, some research with collaborators may need multiple kinds and levels of review depending upon the funding source and nature of the collaboration. These reviews are focused on applying ethical principles to research methods and interactions with human subjects in the context in which the research takes place.

Reference

- Protection of Human Subjects, 45 CFR § 46 (2018).
- U.S. Department of Health and Human Services (HHS), Office for the Protection of Human Subjects (OHRP). 2008. "Guidance on Engagement of Institutions in Human Subjects Research." Accessed July 11, 2017.

Additional Resources

- ClinRegs.gov offers free access to country-specific information on a wide range of clinical research regulations and requirements, including ethical review, informed consent, vulnerable populations, and a variety of other topics.
- U.S. Department of Health and Human Services (HHS) Office for the Protection of Human Subjects (OHRP). 2020. "International Compilation of Human Research Standards."

Original Release: January 2004

Last Updated: January 2019

This module has a quiz.

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